NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 10.08.2018.

PRESENT: 1.Hon'ble member (J) **Shri Rajeswara Rao vittanala,**
2.Hon'ble member (T) D**r. Ashok Kumar Mishra**

CP/CA No	Purpose	Section	Name of Petitioner	Petitioner Advocate	Name of Respondent	Respondent Advocate
CA(CAA) No.41/BB/2018	For pronouncement of order	Sec 230-232	L M Wind Power Technologies Pvt Ltd	SPJ Legal		

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE

PETITIONER/s :

RESPONDENT/s :

ORDER

None present for both sides. CA disposed of by separate order.

Member (T)

Prema Murray

Member (J)

IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

CA(CAA)NO.41/BB/18
Under Section 230 to 232 of Companies Act, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION
IN THE MATTER OF
LM WIND POWER TECHNOLOGIES (INDIA) PRIVATE LIMITED
(TRANSFEROR COMPANY)
WITH
LM WIND POWER BLADES (INDIA) PRIVATE LIMITED (TRANSFEREE COMPANY)

Order delivered on:10th August, 2018

Coram: Hon'ble Shri Rajeswara Rao Vittanala, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

For the Petitioner (s): Mr.Saji.P.John
Advocate
Unit No.1602, 10th Floor,
#30, Prestige Meridian II,
Bengaluru-560001

Per: Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

Heard on: 10.7.2018, 19.7.2018

LM WIND POWER TECHNOLOGIES (INDIA) PRIVATE LIMITED
801, Tower-B, 8th Floor,
RMZ Infinity, Benniganahalli,
Old Madras Road, Bengaluru-560016

ORDER

This Application is filed on behalf of the Applicant Company under Section 230 and 232 of the Companies Act, 2013 read with Rule 3 of the Companies (Compromises, Arrangement and Amalgamation) Rules, 2016, praying to

1. Dispense with the meeting of the Equity Shareholders of the Applicant Company under Section 230 of the Companies Act, 2013; or alternatively, if the applicant Company's prayer for dispensation of the said meeting is rejected, direct that the meeting of the Equity Shareholders of the applicant Company be held on such date and time as this Hon'ble Tribunal may deem fit and that a Chairman be appointed for the meeting, and pass necessary directions with regard to issue of notice, convening, holding and conducting

of the meeting; and pass orders dispensing with publication of notice of meeting in the newspapers, if the said meeting is not convened.

2. Dispense with the meeting of the Secured Creditors of the Applicant Company under Section 230 of the Companies Act, 2013 as there are no Secured Creditors

3. Dispense with the meeting of the Unsecured Loan Creditors of the Applicant Company under Section 230 of the Companies Act, 2013 as there are no Unsecured Loan Creditors.

4. Dispense with the meeting of the Unsecured Trade Creditors of the Applicant Company under Section 230 of the Companies Act, 2013; or alternatively, if the applicant Company's prayer for dispensation of the said meeting is rejected, direct that the meeting of the Unsecured Trade Creditors of the applicant Company be held on such date and time as this Hon'ble Tribunal may deem fit and that a Chairman be appointed for the meeting, and pass necessary directions with regard to issue of notice, convening, holding and conducting of the meeting; and pass orders dispensing with publication of notice of meeting in the newspapers, if the said meeting is not convened;

The averments made in the Company Application are briefly described hereunder:-

Application is filed by the applicant company stating that Applicant Company was incorporated on 22nd May, 2007 as per the provisions of the Companies Act, 1956 in the name and style of LM GLASFIBER R&D (INDIA) PRIVATE LIMITED with Registrar of Companies, Karnataka. Subsequently on 8th July, 2010 the name of the company was changed to LM WIND POWER TECHNOLOGIES (INDIA) PRIVATE LIMITED having CIN no.U72200KA2007PTC042831.The Registered office of the Applicant Company is situated at RMZ Infinity, #302, Tower-B, 3rd Floor, Bennigenahalli, Bangalore-560016.

The main objects of the Applicant Company is to carry on the business of IT enabled services and development of software relating to manufacture of all kinds of Blades, Moulds and Equipments required for Wind Turbine Generators. The copy of Memorandum and Articles of Association of the Applicant Company is shown as **Annexure-A.**

The latest authorized share capital of Applicant Company is Rs.5,00,000/- divided into 5,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up share capital is Rs.1,00,000/- divided into 1,000 Equity Shares of Rs.10/-each fully paid up. The Audited balance sheet as on 31st March, 2017 is shown as **Annexure –B.**

It is further stated that, the Board of Directors of the Applicant Company has approved and adopted a Scheme of Amalgamation at its meeting held on 16th March, 2018 by virtue of which LM Wind Power Technologies (India) Private Limited (Applicant/Transferor Company) to be merged with LM Wind Power Blades (India) Private Limited (Transferee Company) subject to confirmation. A copy of the Board Resolution of the Applicant Company dated 16th March, 2018 approving and adopting the scheme of Amalgamation is shown as **Annexure-E.**

It is further averred in the scheme that the amalgamation of both the Transferor Companies with Transferee Company would inter alia have the following benefits:

1. Greater integration, financial strength and flexibility for the amalgamated entity, which would result in maximising overall shareholder value and will improve the competitive position of the combined entity;
2. Improved organizational capability and leadership, arising from the pooling of resources to compete successfully in an increasingly competitive industry;

It is further stated that the Chartered Accountant after verification of the books of accounts and other records and documents of the Applicant Company has certified the number of shareholders of the Applicant Company as on 16th April, 2018. There are two shareholders. Certificate issued by the Chartered Accountant shown as **Annexure-G series.**

It is further stated that there are No Secured Creditors in the Applicant Company as on 16th March, 2018 as certified by the Chartered Accountant. The Certificate of the Chartered accountant certifying the list of Secured Creditors is shown as **Annexure-H.**

It is further stated that there are No Unsecured Loan Creditors in the Applicant Company as on 16th March, 2018 as certified by the Chartered Accountant. The Certificate of the Chartered Accountant certifying the list of Unsecured Loan Creditors is shown as **Annexure-I.**

It is further stated that there are 20 Unsecured Trade Creditors in the Applicant Company as on 16th March, 2018 as certified by the Chartered Accountant. The Certificate of

the Chartered Accountant certifying the list of Unsecured Trade Creditors is shown as **Annexure-K series.**

We have seen the consent affidavits filed by the two Equity shareholders of Applicant Company /Transferor Company i.e., (i) LM Wind Power Blades (India) Private Limited, holding 999 equity shares, constituting 99.9% of the paid-up capital,(ii) LM Group Holdings A/S, Denmark (Nominee shareholder of LM Wind Power Blades (India) Private Limited holding 1 equity share, constituting 0.01% of the paid-up capital.

It is stated that, the value of amounts due to unsecured trade creditors of the Applicant Company is Rs.60,43,610/- and 92% of the unsecured trade creditors representing value of Rs. 55,99,250/- have given their consent to the Scheme by way of affidavits. We have seen the consent affidavits given by the Unsecured Trade Creditors shown as **Annexure-K series.**

The Applicant Company is seeking an order to dispense with convening of meetings of Equity Shareholders, Secured Creditors, Unsecured Loan Creditors and Unsecured Trade Creditors of the Applicant Company on the ground that, there are Two Equity Shareholders, No Secured Creditors, No Unsecured Loan Creditors and 20 Unsecured Trade Creditors. Two Shareholders and 92% of value of Unsecured Trade Creditors have given their consent by way of affidavit for the proposed scheme of amalgamation.

We have heard the Counsel appearing for the Applicant Company which is Transferor Company for dispensing with the convening of meeting of Equity Shareholders, Secured Creditors, Unsecured Loan Creditors and Unsecured Trade Creditors of the Applicant Company for approving the Scheme of Amalgamation of LM Wind Power Technologies (India) Private Limited (Applicant/Transferor Company) with LM Wind Power Blades (India) Private Limited (Transferee Company) in terms of Scheme of Amalgamation shown as **Annexure-F.**

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the Regional Director, South-East Region. Ministry of Corporate Affairs, Hyderabad pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the Registrar of Companies, Karnataka

pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the Pr.CCIT, Karnataka & Goa, Designated Nodal Officer of Income Tax Department, pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the , Official Liquidator pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the , Reserve Bank of India pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the Stock Exchange, pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company to serve the notice along with the copy of entire Application including the annexures and a copy of scheme upon the other Sectoral Regulators or Authorities, pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules.

In the result, the application is disposed of and Holding of meeting of the Equity Shareholders and Unsecured Trade Creditors is dispensed with. In any eventuality when the Applicant Company approaches this Tribunal for seeking approval of the scheme it would be open for any person who is interested in the Scheme of Arrangement to put forth their contentions before the Tribunal.

ASHOK KUMAR MISHRA
MEMBER, TECHNICAL

RAJESWARA RAO VITTANALA
MEMBER, JUDICIAL

Sirisha